

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3411

By: George and **Patzkowsky** of
the House

and

Green of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to environment and natural resources;
12 defining terms; directing the Department of
13 Environmental Quality to purchase certain equipment;
14 requiring testing of samples of biosolids; requiring
15 certain written warning; prohibiting application of
16 biosolids to certain crops; prohibiting application
17 of biosolids to land more than once every other year;
18 directing the Department of Environmental Quality to
19 propose rules; requiring implementation on or before
20 a certain date; providing for codification; and
21 providing an effective date.

22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. NEW LAW A new section of law to be codified
24 in the Oklahoma Statutes as Section 2-6-501.7 of Title 27A, unless
25 there is created a duplication in numbering, reads as follows:

26 A. For the purposes of this section:

1 1. "Biosolids" means primarily organically treated wastewater
2 materials from municipal wastewater treatment plants that are
3 suitable for recycling as amendments. This term is within the
4 meaning of "sludge" referenced in Section 2-6-101 of this title.
5 Nothing in this section shall be construed to apply to septage or
6 sewage that is removed from residential septic tanks; and

7 2. "PFAS" means per- and polyfluoroalkyl substances, including
8 but not limited to PFOA, PFOS, and any additional compounds
9 designated by the Department of Environmental Quality.

10 B. The Department of Environmental Quality shall purchase the
11 necessary equipment to test for PFAS in biosolids.

12 C. To protect the health and safety of the people of this
13 state, prior to land application of biosolids, a sample of the
14 biosolids that are to be applied must first be tested by the
15 Department of Environmental Quality or by a laboratory appropriately
16 accredited to perform such an analysis in order to determine the
17 amount of PFAS in the biosolids prior to land application.

18 D. All farmers and ranchers whose lands are being applied with
19 biosolids shall be given written notification describing the
20 potential hazards related to biosolids by the person or entity
21 providing such biosolids. The Department of Environmental Quality
22 shall determine the potential hazards that must be disclosed.
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1 E. Biosolids may not be applied to land where crops are grown
2 for human consumption. Furthermore, biosolids may not be applied in
3 the same place more than once every other year.

4 F. The Department of Environmental Quality shall propose rules
5 necessary to implement this section, which shall include an approval
6 process for alternative treatment methods such as microbial and
7 supercritical water oxidation methods to reduce or remove PFAS from
8 biosolids.

9 G. The Department of Environmental Quality shall implement the
10 requirements of this section no later than January 1, 2028.

11 SECTION 2. This act shall become effective November 1, 2026.

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13 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 03/04/2026 - DO PASS,
14 As Amended and Coauthored.
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